

interrogatories were served in June of last year.

Plaintiff requests sanctions against Sitech of \$3,200. Sitech claims that its objections were valid. It further claims that sanctions are limited to “misuse of the discovery process under Code of Civil Procedure section 2030.030. That section, however, concerns the more general sanctions authority for abusive conduct. More specifically section 2030.300(d) provides that the “court shall impose a monetary sanction ... against any party, person, or attorney who unsuccessfully makes or opposed a motion to compel a further response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.”

Nor is the sanction request affected by the fact that an Amended response was served. Rule of Court 3.1348(a) specifically addresses this situation, providing: “The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed, or opposition to the motion was withdrawn, or the requested discovery was provided to the moving party after the motion was filed.” Failure to oppose or filing of a supplemental response “shall not be deemed an admission that the motion was proper or that sanctions should be awarded.” (CRC 3.1348(b).)

The motion against Sitech is granted. Sitech shall provide further responses, without objection, by March 2, 2026. Sitech’s objections are not substantially justified, and sanctions in the amount of \$1,600 are awarded (based on \$400 per hour), to be paid no later than March 2, 2026.

18. 9:00 AM CASE NUMBER: MSC21-00588

CASE NAME: SHARMA VS. ARS ALEUT CONSTRUCTION

***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO SPECIAL INTERROGATORIES BY DEFENDANT PETERSON-CAT**

FILED BY: SHARMA, SHALINI

TENTATIVE RULING:

Plaintiff was injured while operating a “motor grader” on a construction site called “MOTCO” (short for Military Ocean Terminal Concord), in August of 2020. He alleges that Peterson-Cat was responsible for, but negligently performed, maintenance of the grader.

Plaintiff moves to Compel further Special Interrogatories to defendant Peterson-Cat, set 5, numbers 26, 32, 33, 37, 38, 39, 40, 41.

The interrogatories and answers are as follows:

26 (employee contact information for those who worked on, serviced, maintained or prepare graders between August 1, 2020 and January 2021), response that the individual employee, Ryan Carlisle can be contacted through counsel.

32 (type of glass by product number or SKU that was in the Grader’s right door) response that it was “tempered glass.”

33 (employee contact information for those who inspected, worked on, or repaired any grader in 2020) (response that referred to number 23). (Number 23 is not provided in the court file.)

37: (identify contracts with Norcal Rental Group relating to heavy equipment) response that refers to answer to 36. (The response referred to Number 36, but this appears to be a typo, and the actual reference is to number 26, which identifies one employee, Ryan Carlisle.)

38: (identify contracts for rentals of the Grader) response refers to number 36, which should be 26.

39: (identify training provided to James Keating to maintain Caterpillar 140M series graders) response is a general reference to a “variety of training”.

40: (identify training provided to Ryan Carlisle on Caterpillar 140M series graders) response is a general reference to a “variety of training.”

41: (identify training concerning maintenance of Caterpillar 140M series graders to other employees) response is a general reference to “a variety of training.”

Peterson-Cat contends that the answers were sufficient because the reference to number 26 was an adequate response. In essence, they contend that Mr. Carlisle was the only employee who fell within any of the interrogatories.

As to number 26, Peterson-Cat identified Ryan Carlisle. If they are employees or agents or officers whom counsel represents, it can require contact through counsel. No further information is required.

As to 32, if defendant has made adequate inquiry, no further response can be compelled.

As to 33, the response cannot be determined, because number 23 was not provided to the Court.

As to 37 and 38, essentially the identification is only of Mr. Carlisle. While this may seem implausible to plaintiff’s counsel, there is no basis for the Court to compel a further answer.

As to 39-41 the vague references are plainly inadequate. Effort must be made to identify the training more specifically.

In addition, Peterson-Cat amended its responses to number 39 and 40 on January 23, 2026. The amended responses are attached as Exhibits E and F to counsel’s declaration. They provide substantial and detailed new information, and no further order as to 39 and 40 is appropriate at this time. As to 41, the response must be supplemented.

Plaintiff requests sanctions against Peterson-Cat of \$3,200. Peterson-Cat claims that its objections were valid. It further claims that sanctions are limited to “misuse of the discovery process under Code of Civil Procedure section 2023.030. That section, however, concerns the more general sanctions authority for abusive conduct. More specifically section 2030.300(d) provides that the “court shall impose a monetary sanction ... against any party, person, or attorney who unsuccessfully makes or opposed a motion to compel a further response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the

imposition of the sanction unjust.”

Nor is the sanction request affected by the fact that an Amended response was served. Rule of Court 3.1348(a) specifically addresses this situation, providing: “The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed, or opposition to the motion was withdrawn, or the requested discovery was provided to the moving party after the motion was filed.” Failure to oppose or filing of a supplemental response “shall not be deemed an admission that the motion was proper or that sanctions should be awarded.” (CRC 3.1348(b).)

The motion against Peterson-Cat is denied as to numbers 26, 32, 33, 37, 39, and 40. It is granted as to number 41. Peterson-Cat shall provide further responses to number 41, without objection, by March 2, 2026.

Plaintiff only partly prevailed on this motion. It prevailed as to 39, 40, and 41. (The motion is denied as to 39 and 40 only because of the supplemental responses, which were engendered by the filing of the motion.) Peterson-Cat’s objections are not substantially justified as to those matters on which plaintiff prevailed. Sanctions in the amount of \$800 (based on \$400 per hour) are awarded against Peterson-Cat, to be paid no later than March 2, 2026.

19. 9:00 AM CASE NUMBER: MSC21-00637

CASE NAME: OSCAR CORONA VS. JOSHUA WARD

***HEARING ON MOTION IN RE: COMPLIANCE HEARING SET BY THE COURTROOM
FILED BY:**

TENTATIVE RULING:

Based on the settlement administrator’s representation that the funds will not be distributed until February 6, 2026, the compliance hearing is continued to May 27, 2026, at 9:00 a.m., in Department 16. As of March 1, 2026, this matter is assigned for all purposes to Department 16, the Honorable Benjamin Reyes. A case management conference in this matter is set in Department 16 for April 24, 2026, 8:30 a.m.

20. 9:00 AM CASE NUMBER: MSC21-02036

CASE NAME: PEOPLE OF CA VS. CORTEVA INC

***HEARING ON MOTION IN RE: COMPEL DEFENDANTS RESPONSES AND PRODUCE DOCUMENTS
FILED BY: PEOPLE OF THE STATE OF CALIFORNIA EX REL. MEREDITH WILLIAMS, DIRECTOR OF THE
CALIFORNIA DEPARTMENT OF TOXIC SUBSTANCES**

TENTATIVE RULING:

On January 20, the parties were directed to meet and confer in a further attempt to resolve the issues, given the guidance issued by the Court in its order. The parties have not resolved Special Interrogatories 1 and 33, and Requests for Production of Documents 9, 10, and 50. They report that they have “not yet reached an agreement” on those requests, but they are continuing to meet and confer and will report to the Court at the hearing. Accordingly, the Court will not issue a tentative ruling on those requests. **Hearing required.**